

23STCV00968 23STCV00968

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-06-29

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Case Number: 23STCV00968 Hearing Date: June 29, 2026 Dept: 224

Shayler v. Little Caesar, et al.,

TENTATIVE RULING:

The Court previously continued the OSC for the Plaintiff to remedy the following deficiencies:

Item No. 5, Declaration under §585.5 is not completed on the most recently filed CIV-100.

Item No. 6, Declaration of Mailing, is not completed on the most recently filed CIV-100.

Plaintiff has now corrected these deficiencies.

Judgment is ENTERED.

PLAINTIFF TO GIVE NOTICE OF THE JUDGMENT ONCE IT IS SIGNED, AND TO FILE PROOF OF SERVICE OF NOTICE OF THE JUDGMENT.

FACTS OF THE CASE:

The Complaint alleges that Plaintiff James Shayler, a mobility-impaired disabled person, visited a Little Caesars in Los Angeles on January 3, 2023, and alleges the property lacked ADA-compliant accessible parking – specifically a non-compliant curb ramp and improperly located accessible spaces.

PROOF OF SERVICE/DEFAULT:

default entered 9/16/2025,

PRINCIPAL REQUESTED: \$ 8,000.00

INTEREST: \$

COSTS: \$ 1,601.01

ATTORNEY FEES (AND RECEIVER FEES): \$ 570.00

TOTAL: \$ 10,171.01

ANALYSIS:

Plaintiff has submitted all the requisite forms.

The amounts in the Complaint and request are aligned.

All doe defendants have been dismissed.

The proposed judgment is on a JUD-100 form.

585 Declaration has been provided. (Shayler Decl., Fitzgerald Decl.)

Attorney's fees are requested by the Complaint.

An attorney's fees calculation has been provided in accordance with LASC Local Rule 3.214(a). (Fitzgerald Decl., ¶14)

Documentary evidence is provided. (Shayler Decl., Exh. 4; Fitzgerald Decl., Exh. 1-3)

CONCLUSION:

The Court previously continued the OSC for the Plaintiff to remedy the following deficiencies:

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Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.